



LAFPC.CV.58788514

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Ordered by Atty.: KYLE N. CHOATE

CITATION

SHARON MATHEWS

FIFTEENTH JUDICIAL DISTRICT COURT

VS

DOCKET NUMBER: C-20200414 C

DELI MANAGEMENT INC, ET AL

PARISH OF LAFAYETTE, LOUISIANA

STATE OF LOUISIANA

TO: BELLE REALTY OF LAFAYETTE, INC.
THROUGH ITS REGISTERED AGENT FOR SERVICE
EDWARD E. ABDALLA, IV
101 ARNOULD BOULEVARD
LAFAYETTE, LA 70506-6213

of the Parish of Lafayette

You are hereby cited to comply with the demand contained in the petition, a certified copy of which accompanies this citation, (exclusive of exhibits). You should file an answer or other pleading to said petition in the office of the Clerk of the FIFTEENTH JUDICIAL DISTRICT COURT, in the Lafayette Parish Courthouse, LAFAYETTE, Louisiana, within fifteen (15) days after the service hereof. Alternatively, your failure to comply herewith will subject you to the penalty of entry of default judgment against you.

Witness the Honorable Judges of said Court, this JANUARY 28, 2020.


Deputy Clerk of Court
Lafayette Parish

*Attached are the following documents:
PETITION FOR DAMAGES, AND REQUEST FOR NOTICE

SHERIFF’S RETURN
LAFAYETTE PARISH SHERIFF

DATE SERVED: _____, 20____ TIME: _____
SERVED: _____
PERSONAL () _____
DOMICILIARY () ON _____
UNABLE TO LOCATE MOVED () NO SUCH ADDRESS ()
OTHER REASON: _____
RECEIVED TOO LATE FOR SERVICE ()
SERVICE OF WITHIN PAPERS
COSTS FEE \$ _____ MILEAGE \$ _____ TOTAL \$ _____
DEPUTY _____

SHARON MATHEWS	15th JUDICIAL DISTRICT COURT
VERSUS	PARISH OF LAFAYETTE
DELI MANAGEMENT, INC. d/b/a JASON'S DELI, XYZ INSURANCE COMPANY, BELLE REALTY OF LAFAYETTE, LLC, AND LIBERTY MUTUAL INSURANCE COMPANY	STATE OF LOUISIANA
	DOCKET NO.: DIV. " " <i>20200414C</i>

PETITION FOR DAMAGES

NOW INTO COURT, through undersigned counsel, comes **SHARON MATHEWS**, (the Plaintiff), an individual of the full age of majority and domiciled in the Parish of Lafayette, State of Louisiana, who with respect represents that the below allegations are made upon information and belief (unless the context indicates otherwise), that they are set out in the following non-exclusive particulars and if inconsistent, plead in the alternative, and plaintiff does hereby plead the doctrine of strict liability, res ipsa loquitur, negligence, last clear chance, and all other theories of recovery as appropriate under the circumstances, including any aggravation of a pre-existing condition:

1.

Made Defendants herein are:

- (A) **DELI MANAGEMENT, INC. D/B/A JASON'S DELI**, a foreign corporation registered to do and doing business in the State of Louisiana (hereinafter referred to as "**JASON'S DELI**"), who may be served through its agent of service of legal process, C T Corporation System, 3867 Plaza Tower Dr., Baton Rouge, La 70816;
- (B) **XYZ INSURANCE COMPANY**;
- (C) **BELLE REALTY OF LAFAYETTE, INC.**, a foreign corporation registered to do and doing business in the State of Louisiana, who may be served through its agent of service of legal process, Edward E. Abdalla, IV, 101 Arnould Boulevard, Lafayette, LA 70506-6213; and
- (D) **LIBERTY MUTUAL INSURANCE COMPANY**, a foreign corporation registered to do and doing business in the State of Louisiana, who may be served through its agent of service of legal process, The Honorable Kyle Ardoin, Louisiana Secretary of State, 8585 Archives Boulevard, Baton Rouge, Louisiana 70809.

2.

Jurisdiction and venue are proper in the Parish of Lafayette, State of Louisiana as this is the parish where the Plaintiff sustained damages, as well as, where the incident and wrongful conduct occurred.

3.

Petitioner alleges upon information and belief that **DELI MANAGEMENT, INC. d/b/a JASON'S DELI and/or BELLE REALTY OF LAFAYETTE, LLC** owned and/or were responsible for the maintenance and upkeep of the subject property located at 149 Arnould Boulevard in Lafayette, Louisiana and knew or should have known of the condition of said property where petitioner was injured.

4.

Petitioner alleges upon information and belief that at the time of the subject incident **BELLE REALTY OF LAFAYETTE, LLC** was insured under a policy of insurance issued by **LIBERTY MUTUAL INSURANCE COMPANY** and that such policy provides coverage for the injuries alleged herein.

5.

Petitioner alleges upon information and belief that at the time of the subject incident **DELI MANAGEMENT, INC. d/b/a JASON'S DELI** was insured under a policy of insurance issued by **XYZ INSURANCE COMPANY** and that such policy provides coverage for the injuries alleged herein.

6.

Petitioner alleges upon information and belief that this is a civil action to recover all damages sustained by your Petitioner for personal injuries and other damages against the above named defendants, **DELI MANAGEMENT, INC. d/b/a JASON'S DELI, XYZ INSURANCE COMPANY, BELLE REALTY OF LAFAYETTE, LLC, AND LIBERTY MUTUAL INSURANCE COMPANY** (hereinafter referred to as "**DEFENDANTS**"), each of whom are liable jointly, individually and in solido unto your petitioner in a sum of damages as is reasonable in the premises, together with legal interest thereon from and after the date of judicial demand, until paid and for all costs of these proceedings, for the following, to-wit:

7.

Petitioner alleges upon information and belief that on or about January 25, 2019, your petitioner, **SHARON MATHEWS**, parked her vehicle in the parking lot of **JASON'S DELI**, located at 149 Arnould Boulevard in Lafayette, Lafayette Parish of Louisiana. As petitioner attempted to exit her vehicle, she encountered a hazardous and/or dangerous hole causing her to fall onto her vehicle and the damages complained of herein.

8.

The incident referred to above was caused solely by the fault and negligence of Defendants, **DELI MANAGEMENT, INC. d/b/a JASON'S DELI, XYZ INSURANCE COMPANY, BELLE REALTY OF LAFAYETTE, LLC, AND LIBERTY MUTUAL INSURANCE COMPANY.**

9.

Petitioner alleges upon information and belief that the accident and resulting damages were directly and proximately caused by the following acts of negligence on the part of the defendants, their agents, employees, successors, insureds, and/or representatives, particularly, but not exclusively in the following respects:

- (A) failure to warn Plaintiff of the hazardous and/or dangerous condition upon in the premises;
- (B) failing to use reasonable care to keep the premises free of hazardous conditions;
- (C) failing to properly inspect the premises;
- (D) failing to establish proper procedures and the protocols for inspection;
- (E) allowing a dangerous and/or hazardous condition to remain on the premises creating an unreasonable and foreseeable risk and hazard to injure the plaintiff;
- (F) failing to do what they should have done, given the fact that there was a hazardous condition on the property where invitees walk;
- (G) failing to act as a reasonable and/or prudent property owner would have acted under similar circumstances;
- (H) failing to exercise reasonable care;
- (I) Any other acts, or failures to act, to be shown at trial and other violations of C.C. Art. 2315, and/or La. R.S. 9:2800 *et seq.*

10.

Petitioner alleges upon information and belief that the full extent of plaintiff's injury is unknown at this time, but, out of an abundance of caution, it is alleged that as a result of the aforescribed accident due to defendants' negligence your petitioner, **SHARON MATHEWS**, has suffered severe pain in her left hip, foot, leg, and ankle and lower back and has sustained serious and grievous bodily injury to the extent that petitioner is caused continuous and severe pain and suffering, resulting in medical expenses, and other damages.

11.

Petitioner, **SHARON MATHEWS**, alleges upon information and belief that as a result of the aforescribed accident and believed injuries, she sustained and will continue to sustain mental and physical pain and suffering, disability, embarrassment, humiliation, and medical expenses, for which she is entitled to recover a sum of damages as is reasonable in the premises.

12.

Petitioner alleges upon information and belief that it will be necessary to present expert testimony during the preparation for and trial on the merits of this case and as such, desire that all such expert witness fees and deposition costs be taxed as court costs and assessed against the said defendants.

13.

Petitioner, **SHARON MATHEWS**, alleges that the amount in controversy exceeds the jury threshold and she hereby requests trial by jury.

14.

Petitioner, **SHARON MATHEWS**, alleges that due to her poor financial condition and want of means, that she is unable to pay the costs of this lawsuit in advance, or as they accrue; therefore, she is entitled to and desires to prosecute this matter, "In Forma Pauperis."

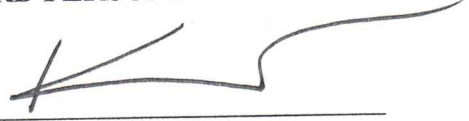
WHEREFORE, petitioner, **SHARON MATHEWS**, prays that:

- 1) Defendants, **DELI MANAGEMENT, INC. d/b/a JASON'S DELI, XYZ INSURANCE COMPANY, BELLE REALTY OF LAFAYETTE, LLC, AND LIBERTY MUTUAL INSURANCE COMPANY** be duly served with a copy of this Petition for Damages and cited to appear herein and answer same;
- 2) After the lapse of all legal delays and due proceedings are had, there be judgment herein in favor of petitioner, **SHARON MATHEWS**, and against the defendants, **DELI MANAGEMENT, INC. d/b/a JASON'S DELI, XYZ INSURANCE COMPANY, BELLE REALTY OF LAFAYETTE, LLC, AND LIBERTY MUTUAL INSURANCE COMPANY** in an amount of damages as is reasonable in the premises for compensatory damages, together with legal interest from and after the date of judicial demand, until paid and for all costs of these proceedings including the fees of expert witnesses;
- 3) That she be allowed to prosecute this matter, "In Forma Pauperis;" and,

- 4) For all orders and decrees necessary in the premises, for all costs of these proceedings and for full, general, and equitable relief.

By her attorneys,

**BART BERNARD PERSONAL INJURY
LAW FIRM**

BY: 
KYLE N. CHOATE, Bar Roll#33524
BART BERNARD, Bar Roll#23649
1031 Camellia Blvd.
Lafayette, LA 70508
(337) 989-2278 Telephone
(337) 769-1623 Facsimile
kyle@bartbernard.com

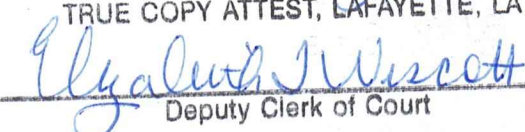
**SERVICE INFORMATION ON THE FOLLOWING PAGE
PLEASE SERVE:**

DELI MANAGEMENT, INC. D/B/A JASON'S DELI
Through its registered agent for service
C T Corporation System
3867 Plaza Tower Dr.
Baton Rouge, Louisiana 70816

XYZ INSURANCE COMPANY (hold service)

BELLE REALTY OF LAFAYETTE, INC.
Through its registered agent for service
Edward E. Abdalla, IV
101 Arnould Boulevard
Lafayette, Louisiana 70506-6213

LIBERTY MUTUAL INSURANCE COMPANY
Through its registered agent for service
The Honorable Kyle Ardoin
Louisiana Secretary of State
8585 Archives Boulevard
Baton Rouge, Louisiana 70809

FILED THIS 22 DAY OF Jan, 20 20
TRUE COPY ATTEST, LAFAYETTE, LA

Deputy Clerk of Court

SHARON MATHEWS VERSUS DELI MANAGEMENT, INC. d/b/a JASON'S DELI, XYZ INSURANCE COMPANY, BELLE REALTY OF LAFAYETTE, LLC, AND LIBERTY MUTUAL INSURANCE COMPANY	15th JUDICIAL DISTRICT COURT PARISH OF LAFAYETTE STATE OF LOUISIANA DOCKET NO.: DIV. " "
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ORDER

The foregoing considered:

IT IS ORDERED that petitioner, SHARON MATHEWS, be allowed to prosecute this matter
"In Forma Pauperis."

THUS DONE AND SIGNED, in Chambers, at Lafayette, Louisiana this 24 day of
Jan., 2020.

DISTRICT COURT JUDGE

SHARON MATHEWS VERSUS DELI MANAGEMENT, INC. d/b/a JASON'S DELI, XYZ INSURANCE COMPANY, BELLE REALTY OF LAFAYETTE, LLC, AND LIBERTY MUTUAL INSURANCE COMPANY	15th JUDICIAL DISTRICT COURT PARISH OF LAFAYETTE STATE OF LOUISIANA DOCKET NO.: DIV. " "
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REQUEST FOR NOTICE

TO THE CLERK OF THE 15th JUDICIAL DISTRICT COURT:

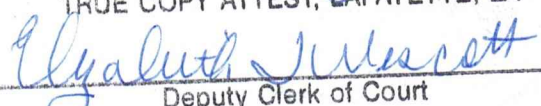
Please take notice that BART BERNARD PERSONAL INJURY LAW FIRM, attorneys for **SHARON MATHEWS**, do hereby request written notice of the date of trial of the above matter as well as notice of hearings (whether on the merits or otherwise), orders, judgments and interlocutory decrees, and any and all formal steps taken by the parties herein, the Judge or any member of Court, in accordance with the provisions of Louisiana Code of Civil Procedure Article 1572, 1913 and 1914.

By her attorneys,

**BART BERNARD PERSONAL INJURY
LAW FIRM**

BY: _____


KYLE N. CHOATE, Bar Roll#33524
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FILED THIS 22 DAY OF Jan, 2020
TRUE COPY ATTEST, LAFAYETTE, LA

Deputy Clerk of Court